The Consumer Rights Act 2015

English contract law | Study guide | Goods, statutory terms and remedies

This guide concerns the supply of goods by a trader to a consumer under Part 1, Chapter 2. The Act treats specified terms as part of the contract even when the parties have left them unwritten.

1. Who is protected?

A consumer is an individual acting wholly or mainly outside their trade or profession. A trader acts for business or professional purposes, personally or through another acting on their behalf (s 2). In an ordinary retail sale, the buyer pursues the statutory remedies against the contracting trader. Section 31 makes terms restricting the listed liabilities or related remedies ineffective against the consumer to that extent.

2. Satisfactory quality under section 9

The test is what a reasonable person would consider satisfactory in light of the description, the price if relevant and all other relevant circumstances. Quality may include ordinary fitness, appearance and finish, freedom from minor defects, safety and durability. Relevant public statements, such as advertising about specific features, may count, subject to s 9(7).

Age, description and price can lower the cosmetic expectations for refurbished goods. A low price does not by itself excuse a serious functional or safety defect.

3. What section 9(4) leaves outside the quality term

The term does not cover a defect specifically drawn to the consumer’s attention before contracting, one that an examination the consumer actually made ought to have revealed, or one apparent on reasonable examination of a contractual sample. Each limitation concerns the defect in question.

4. Other ways goods may fail to conform

Goods must fit a particular purpose made known before contracting where the consumer reasonably relies on the trader’s skill or judgment (s 10). They must match their description (s 11) and, where applicable, the sample or model, subject to the Act’s rules on disclosed differences (ss 13-14). Under s 16, non-conforming digital content included in goods can make the goods themselves non-conforming.

> Distinguish ordinary fitness under section 9 from suitability for a particular purpose under section 10. Ask what the consumer told the trader and why reliance on the trader was reasonable.

Choosing the Statutory Remedy

1. Short-term rejection (sections 19, 20 and 22)

For breaches such as unsatisfactory quality, the consumer can ordinarily reject within 30 days without first seeking repair. The period starts on the day after delivery, transfer of ownership or relevant possession, and any required notification that installation or other work is complete have all occurred. Perishables may have a shorter period.

If the consumer requests or agrees to repair or replacement, the clock pauses while waiting. If the returned goods still fail to conform, the consumer has the longer of the remaining period and seven days after the wait ends. Rejection must be communicated clearly. Any refund due under s 20 must be given without undue delay and within 14 days of the trader agreeing to the entitlement.

2. Repair or replacement (section 23)

The consumer may require repair or replacement unless the chosen option is impossible or disproportionate compared with the alternative. The trader bears necessary costs and must act within a reasonable time and without significant inconvenience. Where incorrect installation is the sole statutory ground (s 15), s 19(4) starts with this route.

3. Price reduction or final rejection (section 24)

Choose one of these remedies where goods still fail to conform after one repair or replacement, neither can be required, or the trader fails to provide the required remedy within a reasonable time and without significant inconvenience. A price reduction is an appropriate amount. On final rejection within the first six months there is generally no deduction for use, subject to exceptions such as motor vehicles. For this rule, the six months start at the same point as the period in s 22.

4. Proof of non-conformity (section 19(14)-(15))

For repair, replacement, price reduction and final rejection in the cases covered, non-conformity found within six months of delivery is presumed to have been present at delivery. The trader may rebut this, and the presumption can be incompatible with the goods or the defect. The presumption does not apply to short-term rejection.

> Ask two separate questions. Which remedy is available at this stage? Who must establish whether the goods conformed when delivered?

Worked Problem and Statutory Sources

1. A refurbished coffee machine

A retailer sells Maya a refurbished coffee machine for £240 for home use. Before purchase the retailer points out a scratch on its side and describes the machine as fully working. Delivery and transfer of ownership take place on the purchase date, with no installation required. On day 45, the steam wand stops working in normal use. Maya requests a repair. The retailer returns the machine on day 60, but the same fault persists. It offers a second repair as the only option.

2. Model answer

Identify the term. The disclosed scratch falls outside s 9 on these facts. That disclosure does not extend to the steam wand. The failure can breach s 9, and the statement that the machine was fully working may also matter under s 11.

Identify the remedy. Maya requested repair after the ordinary 30-day period. The returned machine remains non-conforming after one repair. Under s 24(5)(a) Maya may now seek an appropriate price reduction if she keeps it, or finally reject it. A second repair is optional. If she rejects, the ordinary rule for this non-vehicle within six months gives a £240 refund without a deduction for use.

Deal with proof. For these remedies the day-45 fault is presumed to have existed at delivery, unless the trader proves conformity then or the presumption is incompatible with the goods or fault. Relevant records include the description, delivery date, repair report and evidence of the fault.

> **Change the timing.** If the same fault appeared on day 12 and Maya could show the machine did not conform at delivery, she could exercise short-term rejection without accepting a repair first. Identify the evidence that would support her, such as a diagnostic report or a record of failure during ordinary use.

Official statutory sources

Consumer Rights Act 2015, s 2 | Definitions
Consumer Rights Act 2015, ss 9-16 | Statutory terms
Consumer Rights Act 2015, s 19 | Remedies and proof
Consumer Rights Act 2015, s 20 | Effect of rejection and refund
Consumer Rights Act 2015, s 22 | Short-term deadline
Consumer Rights Act 2015, s 23 | Repair and replacement
Consumer Rights Act 2015, s 24 | Reduction and final rejection
Consumer Rights Act 2015, s 31 | Restrictions on exclusion